

Marine Planning on the High Seas

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1. Marine spatial planning (MSP)
 2. Drivers
 3. Process
 4. Existing sectoral measures
 5. High seas examples, potential sites
 6. Challenges
 7. Role for a new agreement
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*“a **public** process of **analysing and allocating** the **spatial and temporal distribution** of human activities in marine areas to achieve **ecological, economic and social objectives...**”*



- Practical method for rational organization of marine space:
 - balance demands for **development** with each other and with protection of marine **ecosystems**; and
 - achieve **social & economic objectives**.
- A **future-oriented** process
- Selects appropriate **management** strategies

2. Drivers

*‘historical legacy of **piecemeal management** that has largely focused on **single sectors** of activity and failed to consider marine ecosystems as interconnected wholes.’*

Rosenberg & Sandifer 2009

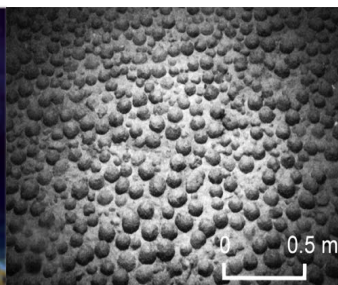
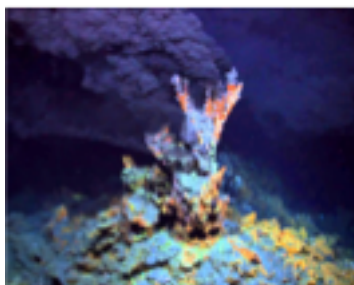
*‘under sector-by-sector management, **trade-offs** within a sector may be considered, but those among sectors are largely ignored and often remain unaccounted for’*

McLeod & Leslie 2012

*‘a system of ocean governance less likely to give us healthy oceans and sustainable economies would be difficult to design. Without **strong interagency coordination**, sectoral management cannot work.’*

McGinnis 2012

- “potential for **conflicting and cumulative** pressures”
- “in most cases, those various activities are **increasing without any clear overarching management system** or a thorough evaluation of their **cumulative impacts** on the ocean environment”



3. Process

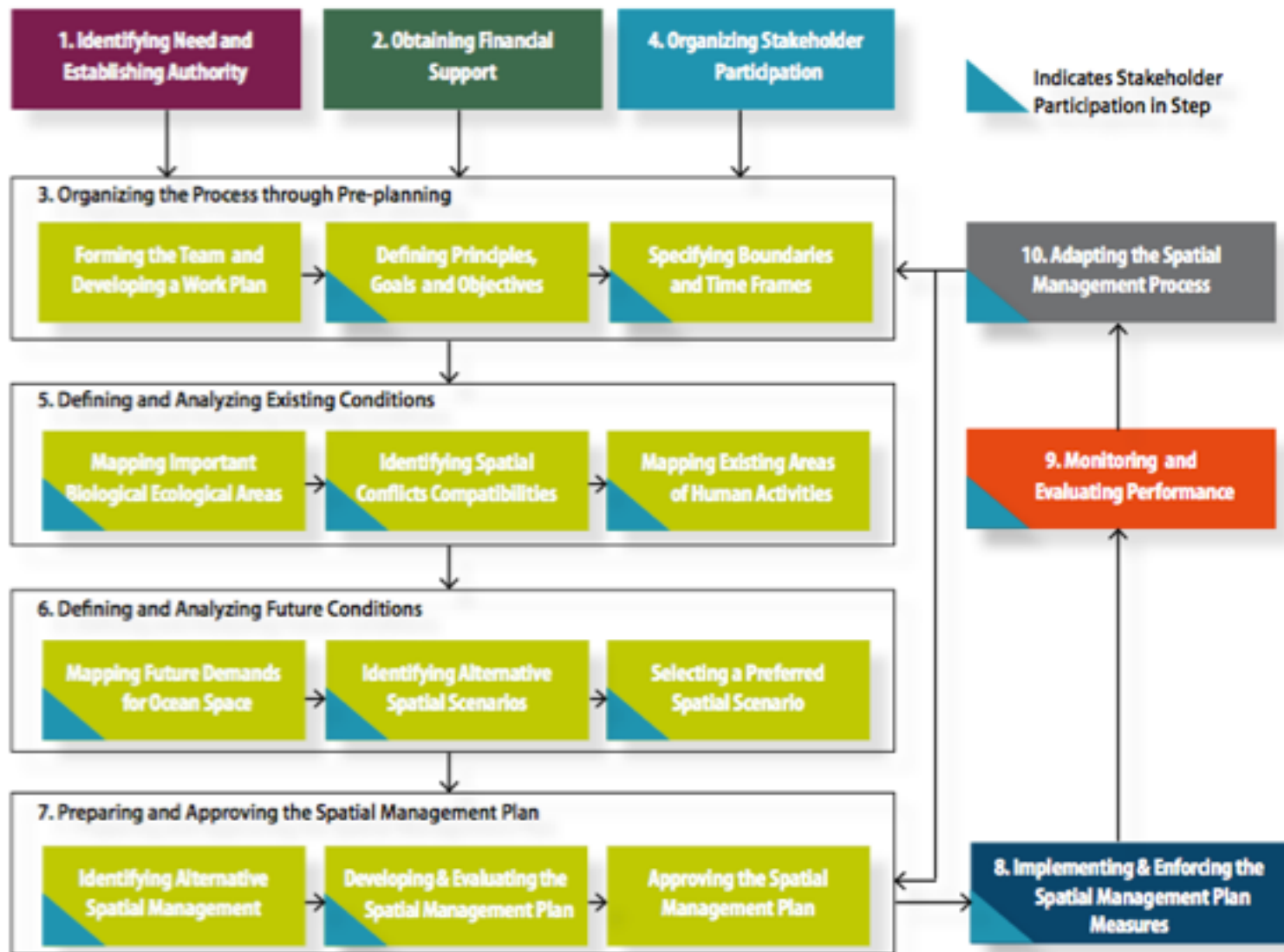
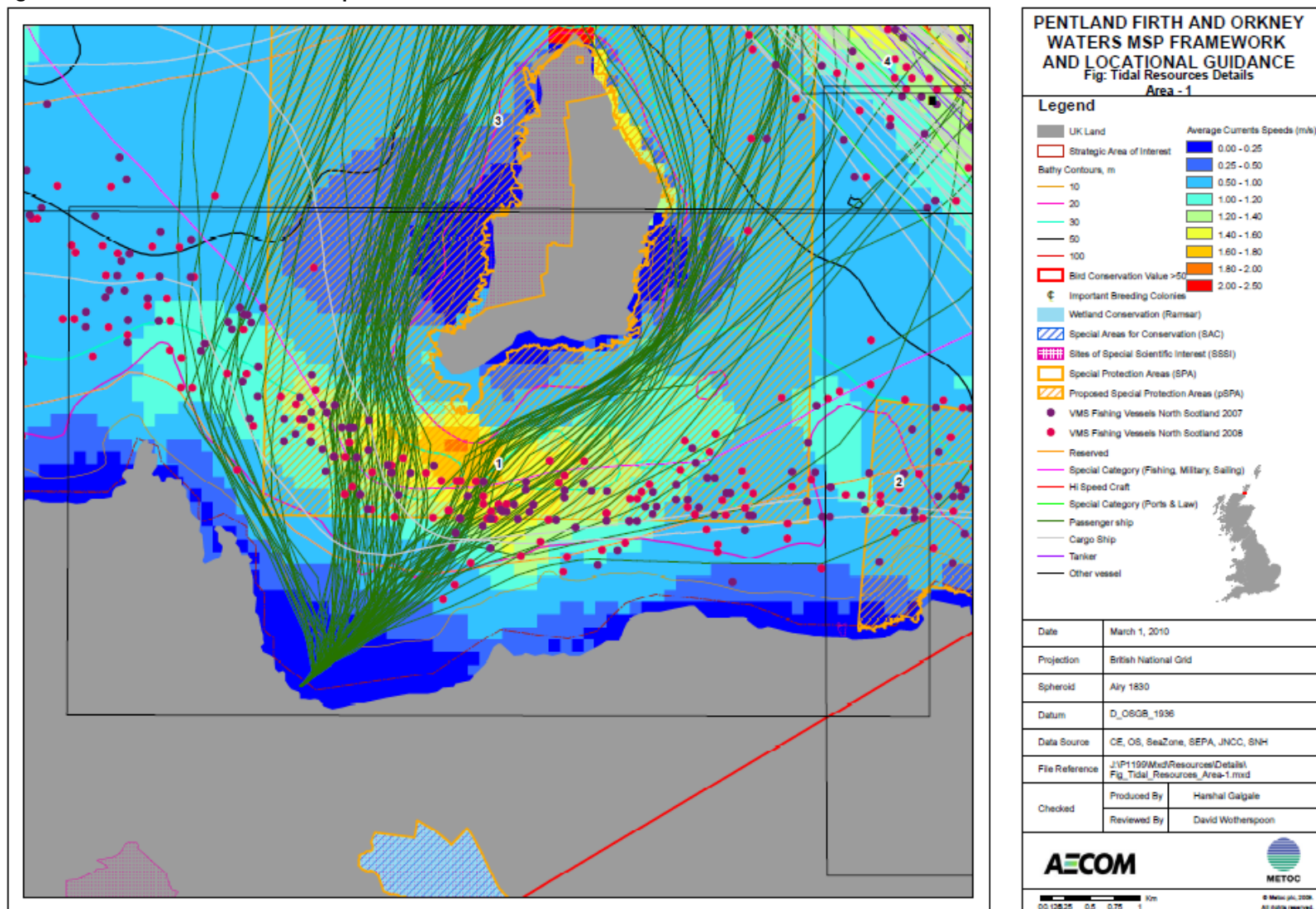
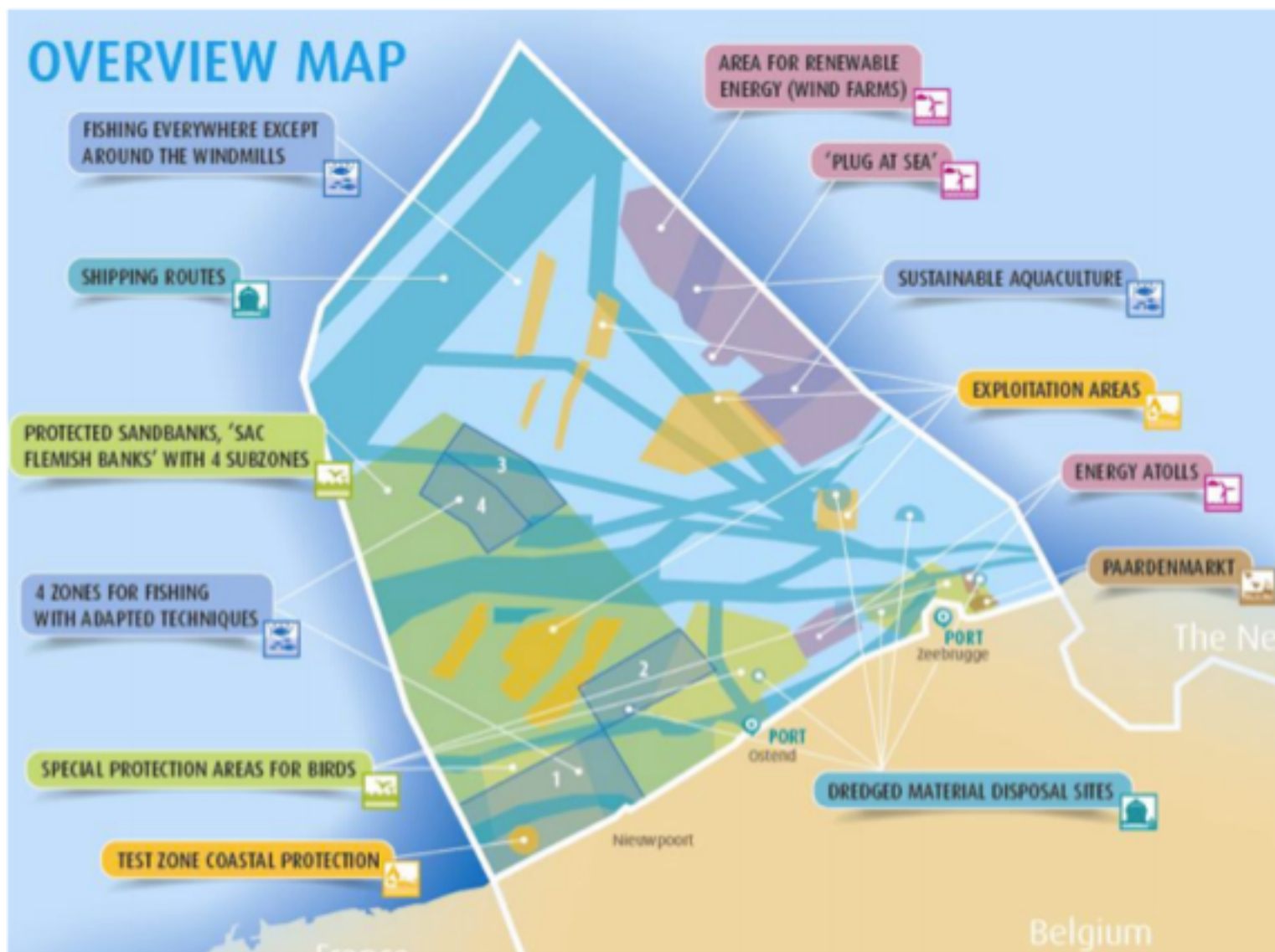


Figure 6.1b: Tidal Resource Detail Map Area 1

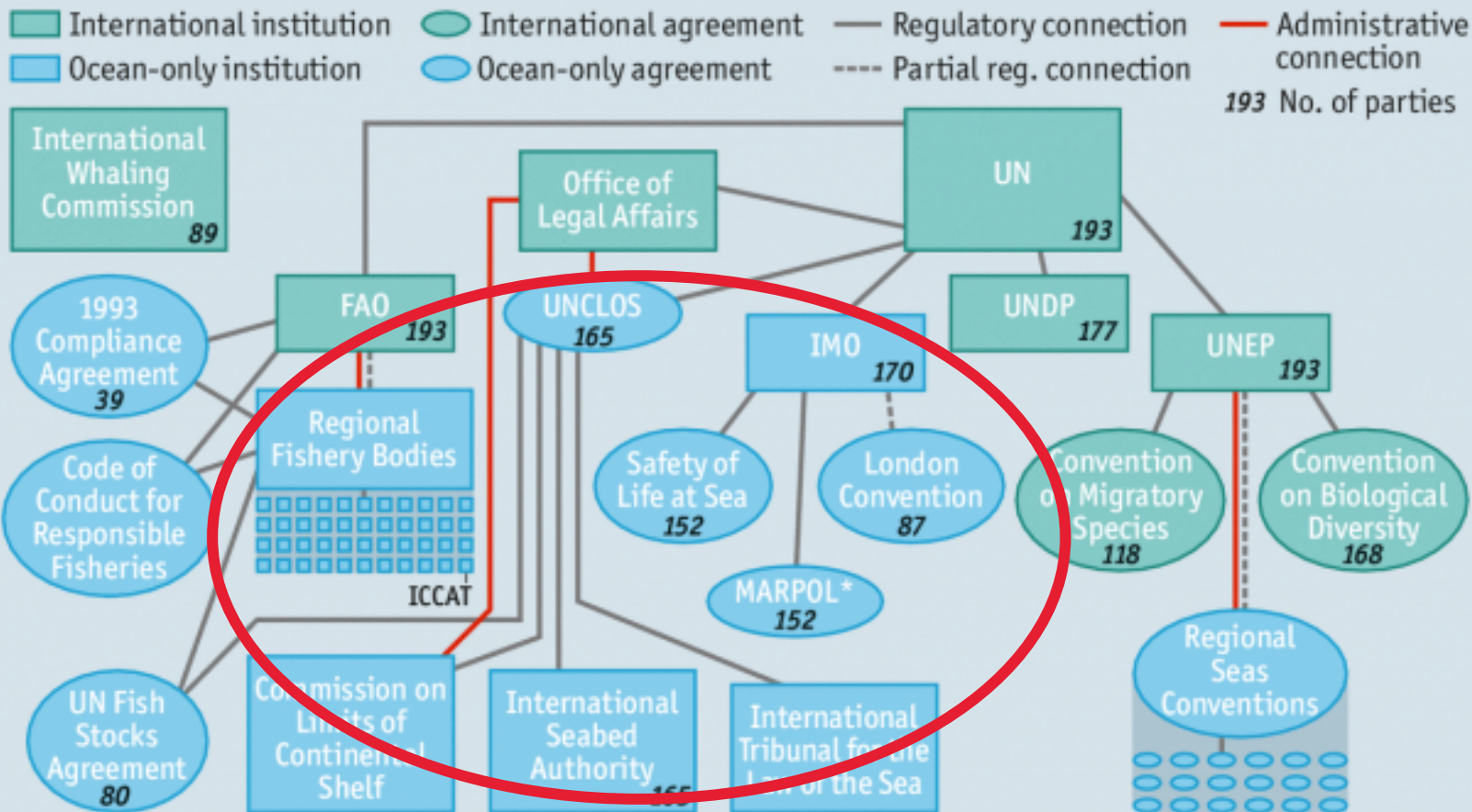




4. Existing sectoral measures

Trouble at sea

International management of the high seas, simplified, 2014



Sources: Global Oceans Commission; *The Economist*

*International Convention for the Prevention of Pollution from Ships

- **Vulnerable Marine Ecosystems (VMEs)** closed to bottom fishing
- **Areas of Particular Environmental Interest (APEI)** where no seabed mining is permitted
- **Particularly Sensitive Sea Areas (PSSAs)** to protect areas that are deemed vulnerable to damage by international maritime activities
- **International Whaling Commission** sanctuaries
- **Environmentally or Biologically Significant Marine Areas (EBSAs)**
- **Regional Seas programmes**
- **UNESCO World Heritage Convention**

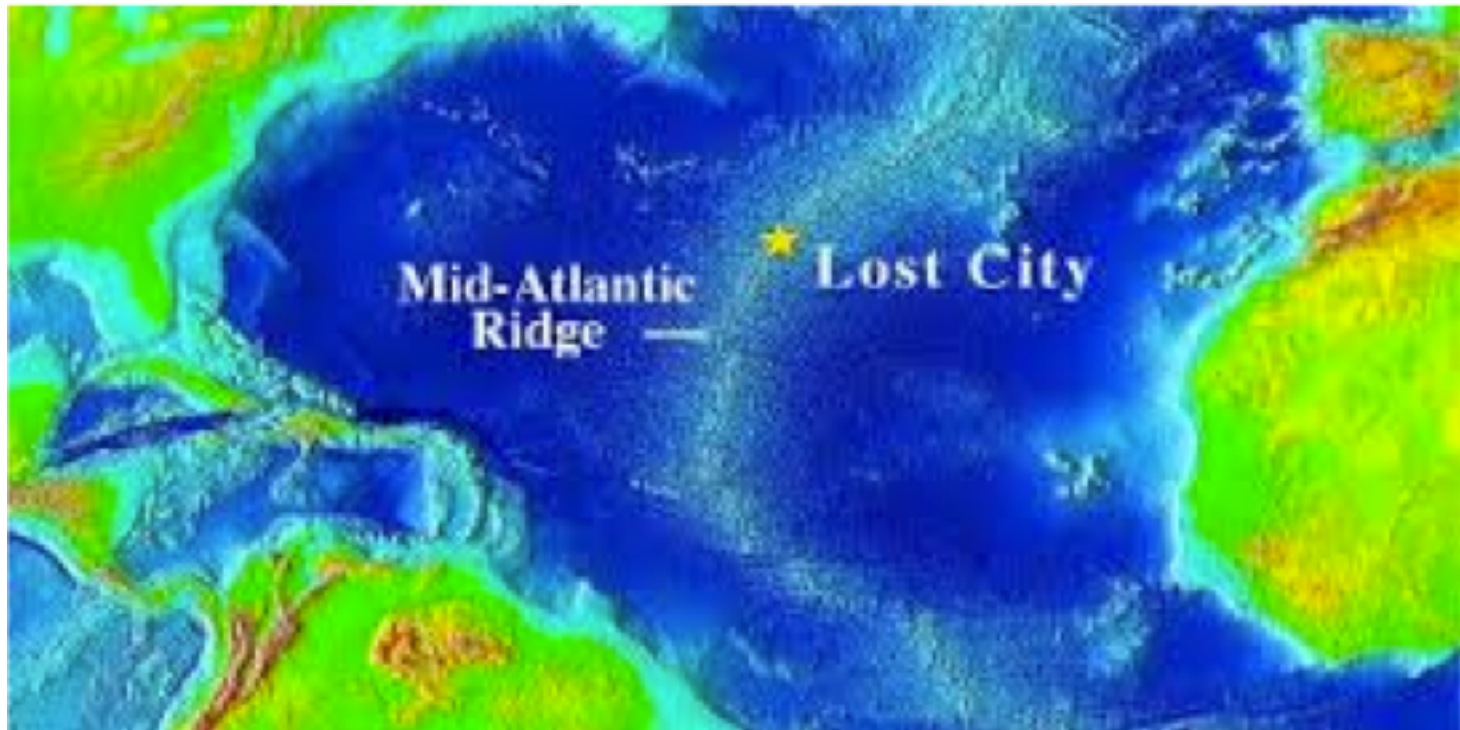
5. Examples, potential sites



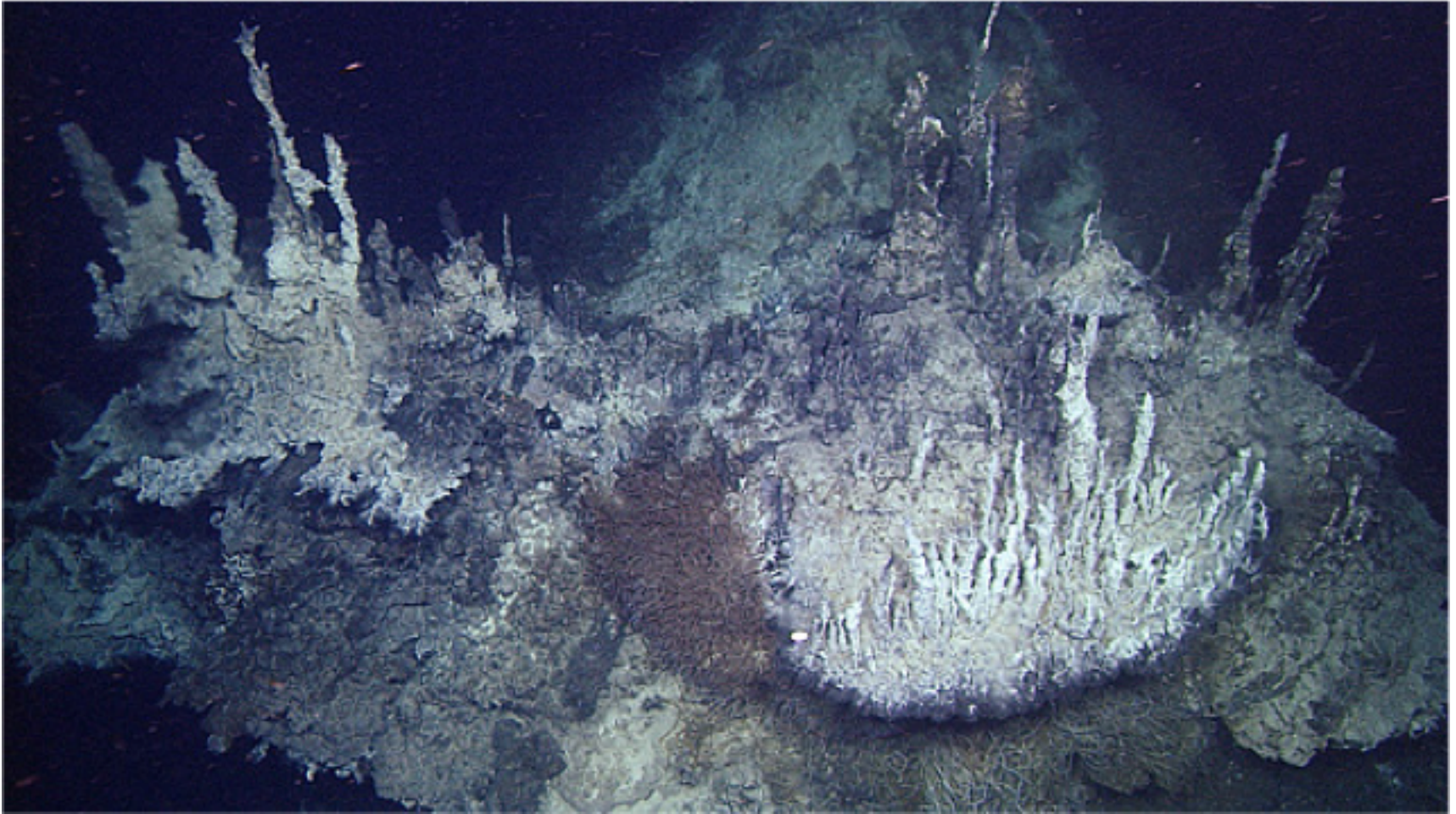


Lessons learned

- Patchwork of partial protection regimes
- Lack of common goals, criteria and scientific advice
- Still missing: ecosystem and precautionary approaches
- Need for global level accountability, mandate and support to spur regional level action







6. Challenges

- **Scale** of ABNJ
- Lack of comprehensive **data**
- Diverse & diffuse group of **stakeholders**
- **Overlaps, conflicts, gaps** between existing sectors/plans
- No body with **authority** to coordinate implementation
- No **legal framework** to underpin such a body/decisions
- **Logistical & political difficulties** of organizing a legal, effective & equitable MSP process.

7. Role for a new agreement

- **Authority** - mandate to oversee planning & implementation
- **Scientific/technical body** or mechanism
- Mechanisms for **funding to support collaboration** between countries of different capacities
- Framework for collecting, sharing, updating **research/data**
- Other provisions: Secretariat; reporting; financial resources; dispute settlement; monitoring; review & compliance
- **Models**: global, regional or hybrid?

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